

24STCV11825 24STCV11825

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BACKGROUND

This case is a housing discrimination matter. Plaintiff Germaine James alleges that she was attempting to find an apartment with her housing voucher. However, when attempting to secure an apartment with said voucher at the Piero Apartments, Plaintiff was allegedly discriminated against.

On July 9, 2024, Plaintiff filed her first amended complaint ("FAC") against Defendants Housing Authority of the City of Los Angeles, Douglas Guthrie, Angela Adams, Jose Gutierrez, Alex Perez, Paola Davis, Jatoya Johnson, Ajay Shah, Serina Cannon, Angelina Zargaryn, Argine Maroutian, Ana Rodriguez, Carlos Van Natter, Ryan Mulligan, Myra Houston, Norma Dela Cruz, Kasey Nguyen, and Margarita Lares. The complaint lists eleven causes of action stemming from the facts alleged above. However, the body of the complaint only lists two causes of action: disability discrimination in violation of FEHA and intentional infliction of emotional distress.

On June 15, 2026, Defendant Housing Authority of the City of Los Angeles ("Housing Authority") filed a demurrer to Plaintiff's FAC. Defendant also filed an accompanying Motion to Strike.

No opposition or reply has been filed.

On August 28, 2026, Defendants Adams, Gutierrez, Perez, Johnson, Shah, Cannon, Zaragaryn, Maroutian, Rodriguez, Cruz, Nguyen and Lares joined the demurrer and motion to strike.

TENTATIVE RULING

Defendant's demurrer is SUSTAINED
with leave to amend.

If Plaintiff files an amended complaint, Plaintiff must: (1) specifically allege that she timely complied with the claim presentation requirement or allege circumstances excusing her noncompliance; (2) plead facts to support all causes of action asserted; (3) ensure the complaint is more certain, clear and understandable; and (4) allege Defendant Housing Authority's vicarious liability as it relates to the intentional infliction of emotional distress cause of action.

Lastly, Defendant's Motion to Strike is GRANTED without leave to amend as to Defendant Housing Authority.

LEGAL STANDARD

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (See Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (See Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; see also Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is

any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

DISCUSSION

I.

Meet
and Confer

Before filing a demurrer or motion to strike, the demurring party shall meet and confer with the opposing party in person, by telephone, or by video conference. (Code Civ. Proc., § 430.41, subd. (a).) The demurring party must file a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 430.41, subd. (a)(3).)

“A determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer.” (Code Civ. Proc., § 430.41, subd. (a)(4).)

Here, the parties discussed the demurrer by telephone. (See Bergerson Decl., p. 2:6-9.) Thus, the meet and confer requirement has been satisfied. (See Code Civ. Proc., § 430.41, subd. (a).)

II.

Claim
Presentation Requirement

The Court finds that Plaintiff failed to allege compliance, or circumstances excusing noncompliance, with the claim presentation requirement.

Under the Government Claims Act, a plaintiff may not maintain an action for money or damages against a public entity unless a written claim has first been presented to the public entity and rejected in whole or in part. (See Govt. Code, §§ 810, 905, 905.2, 945.4; State of California v. Superior Court (2004) 32 Cal.4th 1234, 1239.) “[O]ur Courts of Appeal have repeatedly held that

failure to allege facts demonstrating or excusing compliance with the [claim presentation] requirement subjects a complaint to general demurrer for failure to state a cause of action."

(State of California v. Superior Court (2004) 32 Cal.4th 1234, 1240-1241.) However, "Where

a claimant has attempted to comply

with the claim requirements but

the claim is deficient in some way, the doctrine of substantial compliance may validate the claim 'if it substantially

complies with all of the statutory requirements

. . . even though it is technically

deficient in one or more particulars."

(Connelly v. County of Fresno (2006)

146 Cal.App.4th 29, 38.) Accordingly, for a

valid cause of action to be stated,

a plaintiff must allege either compliance with the claim presentation

requirement or circumstances excusing noncompliance. (State of California v. Superior Court (2004) 32 Cal.4th 1234, 1245.)

The purpose of these

statutes is to provide the public entity sufficient information to enable it to

adequately investigate claims and to settle them, if appropriate, without the expense of

litigation. (Stockett v. Association of Cal. Water Agencies Joint Powers

Ins. Authority (2004) 34

Cal.4th 441, 446.)

Here, Plaintiff did not

allege that she presented her claim to Defendants and that her claim was

rejected in whole or in part. (See generally FAC.) Plaintiff also did not

allege circumstances excusing her noncompliance with the claim presentation

requirement. (See generally FAC.)

Accordingly, because

Plaintiff did not allege either compliance with the claim presentation

requirement, or circumstances excusing noncompliance,

her complaint is subject to a general demurrer for failure to state a cause of

action. (See State of California v. Superior Court (2004) 32 Cal.4th 1234, 1240-1241.) Plaintiff will be granted to leave to amend. In

an amended complaint, Plaintiff must specifically allege that she timely

complied with the claim presentation requirement or allege circumstances

excusing her noncompliance.

III.

Uncertainty

and Failure to State Facts

The Court finds that Plaintiff fails to plead sufficient facts to support her causes of action and that the FAC is uncertain.

First, the FAC's caption states that there are eleven causes of action. However, the body of the complaint only lists two causes of action. (See generally FAC.) Therefore, there are no pleaded facts to support nine out of the eleven captioned causes of action. Accordingly, these nine unsupported causes of action are subject to demurrer. (See Code Civ. Proc., § 430.10, subd. (e).)

Furthermore, the FAC is confusing and difficult to understand. Plaintiff's allegations do not allow the reader to understand the relevant timeline. Plaintiff also does not sufficiently explain who the named individual defendants are, what their relationship is to the case, and the basis on which they should be held liable. It is also difficult to determine what claim is being ascertained against which defendant. The Court finds the FAC is uncertain, ambiguous, and unintelligible and the demurrer is also sustained on this basis. (See Code Civ. Proc., § 430.10, subd. (f).)

IV.

Tort

Liability

The Court finds that Defendant Housing Authority is immune from direct liability for intentional infliction of emotional distress.

Under the Government

Claims Act, "A public entity

is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person." (Gov. Code, § 815, subd. (a).) Thus, "[P]ublic entities may only be held liable only if a statute is found declaring them to be liable." (Hoff v. Vacaville Unified School District (1998) 19 Cal.4th 925, 932.) One such statute establishing liability for public entities is Government

Code section 815.2, subdivision (a), which states: “a public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.” ½ Put another way, “the general rule is that an employee of a public entity is liable for his torts to the same extent as a private person (§ 820, subd. (a)) and the public entity is vicariously liable for any injury which its employee causes (§ 815.2, subd. (a)) to the same extent as a private employer.” (See C.A. v. William S. Hart Union High School Dist. ½ (2012) 53 Cal.4th 861, ½ 868.)

Here, Plaintiff alleges a cause of action for intentional infliction of emotional distress (“IIED”). Disregarding the fact that Plaintiff does not plead facts to support this cause of action, Defendant Housing Authority cannot be held directly liable for this cause of action. (See Gov. Code, § 815, subd. (a).) Thus, without any facts to support a claim of vicarious liability, the IIED cause of action directly against Defendant Housing Authority is subject to demurrer.

V.
Motion
to Strike

The Court finds that Plaintiff cannot allege punitive damages against Defendant Housing Authority (i.e., a public entity).

“Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof, but this time limitation shall not apply to motions specified in subdivision (e).” (Code Civ. Proc., § 435, subd. (b)(2).) “The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436.)

Under Government Code section 818, “a

public entity is not liable for damages awarded under Section 3294 of the Civil Code or other damages imposed primarily for the sake of example and by way of punishing the Defendant."

Here, Defendant Housing

Authority is a public entity. Therefore, Plaintiff cannot pursue punitive damages against it. (See Gov. Code, § 818.) Accordingly, the Court strikes Plaintiff's request for punitive damages as against Defendant Housing Authority as an improper matter not filed in conformity with relevant law. (See Code Civ. Proc., § 436, subds. (a)-(b).) Plaintiff will not be granted leave to amend as to Defendant Housing Authority of the City of Los Angeles.

CONCLUSION

For the foregoing reasons,
Defendant's demurrer is SUSTAINED with leave to amend.

If Plaintiff files an

amended complaint, Plaintiff must: (1) specifically allege that she timely complied with the claim presentation requirement or allege circumstances excusing her noncompliance; (2) plead facts to support all causes of action asserted; (3) ensure the complaint is more certain, clear and understandable; and (4) allege Defendant Housing Authority's vicarious liability as it relates to the intentional infliction of emotional distress cause of action.

Lastly, Defendant's Motion

to Strike is GRANTED without leave to amend as to Defendant Housing Authority.

Plaintiff has twenty days

to file and serve an amended complaint.